

IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	
	)	COMPLAINT NO. 96-019
GARY VENZKE, Ph.D.,	)	
License No. 00256	)	
	)	FINAL ORDER
Respondent.	)	

NOW on this 9th day of November 2001 this matter comes before the Iowa Board of Psychology Examiners (Board) for the purposes of entering a FINAL ORDER in this case. Pursuant to the Stipulation and Informal Settlement Agreement entered into by the parties on April 14, 1997 and hereby incorporated by reference, the Board enters the following ORDER revoking license number 00256:

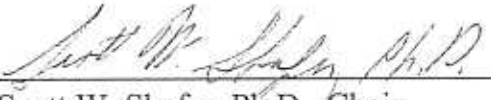
1. Respondent was originally licensed to practice psychology in the State of Iowa on November 18, 1977 and holds license number 00256. Respondent's license lapsed on June 30, 1996 and was formally suspended by the Board on April 14, 1997.
2. Respondent currently resides in the custody of the Iowa Department of Corrections following his criminal conviction for the offense of murder in the first degree.
3. Respondent's conviction was affirmed on appeal by the Iowa Court of Appeals. See State of Iowa v. Venzke, 576 N.W.2d 382 (Iowa App. 1997).
4. On April 14, 1997 the Respondent entered into a Stipulation and Informal Settlement Agreement in which the Respondent agreed that his license to practice psychology in Iowa would be revoked if his criminal conviction was affirmed on appeal.

5. In accordance with the terms of the Stipulation and Informal Settlement Agreement the Respondent's license number 00256 is hereby REVOKED and this FINAL ORDER shall become part of the permanent record of Respondent.

6. This FINAL ORDER as well as the Statement of Charges are public records available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

IT IS THEREFORE ORDERED:

1. The Iowa Board of Psychology Examiners license number 00256 issued to Respondent is REVOKED effective December 29, 1997.



Scott W. Shafer, Ph.D., Chair
BOARD OF PSYCHOLOGY EXAMINERS
Dated this 9th day of November 2001

copy to:

John J. Hines
Attorney for Respondent

Gary Venzke, Ph.D.
Respondent

Jean M. Davis
Assistant Attorney General

IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	
	)	COMPLAINT NO. 96-019
GARY VENZKE, Ph.D.	)	
	)	STIPULATION AND INFORMAL
Respondent	)	SETTLEMENT AGREEMENT

The Iowa Board of Psychology Examiners (Board) and Gary Venzke (Respondent) enter into the following stipulation and informal settlement pursuant to Iowa Code section 17A.10 and 272C.3(4) (1995):

1. Respondent was originally licensed to practice psychology in the state of Iowa on November 18, 1977 and holds license number 00256. Respondent's license lapsed on June 30, 1996.

2. Respondent currently resides in the custody of the Iowa Department of Corrections following his conviction for the offense of murder in the first degree.

3. The Board has jurisdiction of the parties and the subject matter.

4. A Notice of Hearing and Statement of Charges has been filed the same day as this informal settlement agreement.

5. Execution of this Informal Settlement constitutes the resolution of all issues in this disputed claim. By executing this Informal Settlement, Respondent expressly waives the right to notice of hearing and any such hearing on these charges.

6. Respondent is freely and voluntarily entering into this agreement, and he agrees that the State's counsel may present this agreement to the Board.

7. This Stipulation and Informal Settlement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

8. This agreement shall be part of the permanent record of Respondent.

9. This Stipulation and Informal Settlement as well as the Statement of Charges are public records available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

IT IS THEREFORE ORDERED:

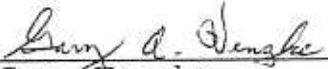
1. The Iowa Board of Psychology Examiners license number 00256 issued to Respondent is suspended on the date the Stipulation and Informal Settlement Agreement is signed and approved by the Board.

2. The suspension ordered as the result of this Stipulation and Informal Settlement Agreement shall be continued through the final disposition of Respondent's appeal of his criminal conviction to the Iowa Supreme Court.

3. In the event that the Iowa Supreme Court upholds the Respondent's criminal conviction, the Respondent agrees that his license shall be immediately revoked, said revocation shall be effective on the same the day of the Supreme Court's ruling on Respondent's appeal.

AGREED AND ACCEPTED:

RESPONDENT



Gary Venzke



Attorney for Gary Venzke

Dated this 31 day of
March, 1997.

IOWA BOARD OF PSYCHOLOGY
EXAMINERS



Robert Jones, Chair

Dated this 14 day of
April, 1997.

IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	
	)	COMPLAINT NO. 96-019
GARY VENZKE, Ph.D.	)	
	)	STATEMENT OF CHARGES AND
Respondent	)	NOTICE OF HEARING

TO THE ABOVE NAMED RESPONDENT:

Pursuant to Iowa Code sections 17A.12 through 17A.18 (1995); 147.55(5); and 272C.3 and 272C.6 and rules found at 645 Iowa Administrative Code section 240.212(1)(e), and upon a finding of probable cause by the Iowa Board of Psychology Examiners, you are notified that this Statement of Charges is filed against you and a disciplinary hearing scheduled. The disciplinary hearing will be continued at this time pending the execution of the Stipulation and Informal Settlement Agreement.

If the parties are unable to complete the Stipulation and Informal Settlement Agreement, this matter will be scheduled for a hearing by the Board. You have the right to be represented by counsel at your expense, to present evidence on your behalf, and to examine and cross-examine witnesses. If you fail to appear, the hearing may proceed and a decision rendered in your absence.

The hearing will determine whether discipline should be taken against your license based on the following allegations:

1. Respondent Gary Venzke is licensed to practice as a psychologist in the state of Iowa, holds license number 00256 and that the Respondent's license lapsed on June 30, 1996.

2. Respondent's last address as reported to the Board is 400 Ridgeview Dr., S.E., Independence, IA 50644.

3. That on October 15, 1996 the Iowa District Court for Buchanan County found the Respondent guilty of murder in the first degree in violation of Iowa Code §707.2(1).

4. That the Respondent was sentenced to life in prison and was committed to the custody of the Director of the Department of Corrections.

5. That the Respondent has been convicted of a felony which relates to Respondent's profession and which affects his ability to practice the profession.

6. Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code sections 147.55(5), 272C.10 and 645 Iowa Administrative Code section 240.212(1)(e).

* * * * *

The hearing will be presided over by the Iowa Board of Psychology Examiners which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

The Office of the Iowa Attorney General is responsible for the representation of the public interest in these proceedings. Copies

of all filings should also be served on counsel at the following address:

Jean M. Davis
Assistant Attorney General
Hoover State Office Building
Des Moines, Iowa 50319
(515) 281-5637

Iowa Board of Psychology
Examiners



Dated this 14 day of April, 1996. ^{7 AS}